

		Two, Nos. 53-57 in accordance with Plaintiff's agreement to produce within 30 days. <i>Terminating</i> Defendant seeks terminating sanctions and a monetary sanction. Here, Defendant has shown that Plaintiff has failed to engage in discovery or meet and confer efforts, but has not shown a failure to comply with a court order. Defendant does not otherwise present evidence supporting the issuance of a terminating sanction. Defendant's request for a terminating sanction is DENIED. <i>Monetary Sanctions</i> As the Court grants the motion, and there is no showing that Plaintiff acted with substantial justification or that other circumstances make the imposition of the sanction unjust, the Court grants a monetary sanction. Defendant requests that monetary sanctions in the amount of \$2,075.45 be awarded. The requested amount consists of 2.5 hour to draft this motion, an anticipated 1.5 hours to review the opposition and draft a reply, and 1 hour for the hearing on the motion, at \$400 per hour, in addition to \$75.45 for the filing fee. (Sorrentino Decl., ¶¶ 28-29.) As there is no opposition or reply, the Court GRANTS reduced monetary sanctions in the amount of \$1,475.45 (\$400/hour x 3.5 + \$75.45) against Plaintiff, to be paid within 30 days. <i>Defendant to give notice.</i>
101	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	On 12/12/2025 Defendants filed the following Motions , set for hearing on 6/25/2026: (ROA 169) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. [Note: MP fails to indicate which RPDs are at issue in the notice of motion, nor does MP indicate how much money in sanctions he seeks.] (ROA 181) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion.

	(ROA 185) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Special Interrogatories, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. (ROA 189) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Special Interrogatories, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. Additionally, on 4/10/2026 Plaintiff filed the following Motions: (ROA 203) Plaintiff Space Exploration Technologies Corp. ("Plaintiff") will and hereby does move this Court pursuant to California Code of Civil Procedure section 2031.310(a) for an order compelling Defendant Ali Enteshari ("Defendant") to provide further responses to Plaintiff's Third Set of Requests for Production of Documents, Numbers 67 68, 71-76, and 78. Plaintiff also moves for sanctions against Defendant his counsel at Berstein Law PC pursuant to California Code of Civil Procedure §§ 2031.310(h) and 2023.050(a)(3), in the amount of \$2,000. (ROA 207) Plaintiff Space Exploration Technologies Corp. ("Plaintiff") will and hereby does move this Court pursuant to California Code of Civil Procedure section 2031.320(a) for an order compelling Ali Enteshari ("Defendant") to comply with his response to Plaintiff's requests for production of documents, set one, numbers 22, 43, and 48-49, and set two, numbers 58-60 and 61-66. Plaintiff also moves pursuant to California Code of Civil Procedure sections 2031.320(b) and 2023.050(a)(3) for sanctions in the amount of \$5,000 against Defendant and his counsel at Berstein Law PC, jointly and severally. Notably, on 6/1/2026 pursuant to a Plaintiff's Ex Parte, Judge Hesseltine advanced ROAS 203, 207 to be heard on 6/25/2026. (See ROA 225). As such, on calendar for 6/25/2026 are six (6) discovery motions; and to date, the parties herein have filed eight (8) discovery motions. In total, as to these six (6) motions (and without counting reply documents), the parties filed over 2,000 pages of documents for this Court to wade through. MEET AND CONFER
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		The motions must be accompanied by a declaration stating facts showing a “reasonable and good faith attempt, either in person, by telephone or by videoconference” to resolve informally the issues presented by the motion before filing the motion. [CCP §§ 2016.040 (amended eff. 1/1/26), 2030.300(b)(1).] The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions that are likely to be imposed if the matter comes before the court. [<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 CA4th 1006, 1016.] Various factors may be considered by the court in determining whether a party made a “reasonable” and “good faith” attempt to resolve the issue informally, including: • Size of case, complexity of discovery: Greater effort at informal resolution may be required in larger, more complex cases; • Previous relations with opposing counsel: The history of the litigation and the nature of the interaction between counsel; • Present dispute: The nature of the issues, and the type and scope of discovery requested; • Timing: Making the first attempt to meet and confer shortly before the filing deadline may lead to a finding that there was no good faith attempt to resolve the issues informally. Conversely, a delayed response to a meet and confer letter may lead to the same finding as to the responding party; • Prospects for success: Whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit; • Evidence of discovery abuse? When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden. [<i>Obregon v. Sup.Ct. (Cimm's, Inc.)</i> (1998) 67 CA4th 424, 431; <i>Marriage of Moore</i> (2024) 102 CA5th 1275, 1293-1296.] Failing to make a “reasonable and good faith attempt in person, by telephone or by videoconference” to resolve the issues informally before a motion to compel is filed constitutes a “misuse of the discovery process.” Monetary sanctions can be imposed against whichever party is guilty of such conduct, even if that party wins the motion to compel. [CCP §§ 2023.010(i).]
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In this instance, as to the four motions filed by Defendants, Defense Attorney David A. Berstein, declares, "As scheduled, on December 3, 2025, the Parties met and conferred, via phone, regarding Defendant's November 12, 2025, meet and confer letter." (Berstein Decl. ¶10.) Apparently, "The Parties did not come to an agreement on the call, so the Parties agreed to an extension of the Motion to Compel deadline to December 12, 2025, so the Parties could continue meet and confer discussions post-call." (Id. ¶11.) Thereafter, Mr. Berstein declares, "Plaintiff's counsel confirmed the deadline and also stated, 'Thanks for taking the time to discuss today. I know we talked about defendants coming up with a more specific list for further discussion, and it would probably make sense to have another call after that, maybe with David joining so we can iron out any remaining differences.'" (Id. ¶13.)

That is, Plaintiff's counsel was asking that declarant, David, could join in on the meet and confer.

Mr. Berstein indicates, "Defendant's counsel replied, 'Thank you for your time yesterday as well. I spoke with David, and we remain firm in our positions detailed in our November 12, 2025, meet and confer letter, which were reiterated yesterday on our call. Also, during our call yesterday, we discussed Plaintiff assessing, after the call, whether Plaintiff would be willing to supplement any of its responses. Is Plaintiff looking to supplement any discovery? If not, it appears the Parties are at an impasse, and we will be proceeding with our Motions.'" (Id. ¶14.)

These motions followed because Plaintiff did not supplement the responses.

However, Counsel for Plaintiff paints a different picture. Attorney Randy R. Haj filed declarations in support of Defendants' oppositions indicating:

"9. Defendants Failed to Engage in Good Faith Meet and Confer Efforts This motion was preceded by a cursory meet and confer on December 3, 2025, which was conducted between myself and the most junior attorney on Defendants' legal team, Kia Mojabe. Ms. Mojabe explained at the outset of the call that she did not have authority to bind Defendants to anything and would need to check with one of the partners on the case, either lead counsel David Berstein or J.R. Dimuzio, to confirm anything we discussed.

"10. During the call, I asked why the responses agreeing to provide all nonprivileged responsive documents were

	insufficient, but Ms. Mojabe would not provide any explanation and simply repeated she did not think the responses were adequate. I also asked for the relevance of the demands seeking Plaintiff's fraud-prevention measures and policies to control access to its technology, but her only response was to repeat "we think it's relevant" (or words to that effect) several times." Plaintiff argues that while the meet and confer took place on December 3, 2025, Defendant's counsel handed the process off to the lowest-level associate on the team who explained from the outset she would have to check with one of the partners before agreeing to anything. Then, after the meet and confer, when Mr. Haj asked for Lead Defense Attorney, David Berstein, to take part in the discussions, it appears Defendants disagreed as to the necessity of this next step in the meet and confer efforts; and rather, opted to stand by their positions. Given that a) Defense counsel handed this matter over to a junior associate with no authority to bind defendants b) and has filed four (4) motions with approximately 190 responses at issue, the Court finds that further meeting and conferring, in good faith, with lead counsel, is in order. As to Plaintiff's Motions (ROA 203, 207), As to the Motion to Compel Defendant Ali Enteshari's Compliance With His Response to Requests for Production Sets One and Two (ROA 207), Attorney Haj declares: "10. Plaintiff attempted to meet and confer prior to filing this Motion but Defendants' counsel refused to make themselves available for a phone call. I first wrote Plaintiff's counsel about all of the issues raised in the Motion on February 17, 2026, and asked for a time to meet and confer. I followed up on February 20, February 26, and March 4, but Defendants' counsel never provided a substantive response or a time to meet and confer. Attached hereto as Exhibit "1" is a true and correct copy of my meet and confer emails to Defendants' counsel (David Berstein, JR Dimuzio, and Kia Mojabe, all of Berstein Law PC)." (ROA 196) As to the Motion to Compel Further Responses to Its Third Set of Requests for Production to Defendant Ali Enteshari (ROA 203), Attorney Haj declares: "7. Plaintiff attempted to meet and confer prior to filing this Motion. I first wrote Plaintiff's counsel about all of
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the issues raised in the Motion on February 10, 2026, and asked for a time to meet and confer. I followed up on February 12, 17, 20, and 26, and again on March 4, but Defendants' counsel never provided a substantive response or a time to meet and confer. Attached hereto as Exhibit "1" is a true and correct copy of my meet and confer emails to Defendants' counsel (David Bernstein, JR Dimuzio, and Kia Mojabe, all of Bernstein Law PC)."

(ROA 201)

Defendants contend that the meet and confer record established by Plaintiff is incomplete, and that, "As reflected in Exhibit A, on February 12, 2026, at 4:43 p.m., Cassidy Valenzuela of Bernstein Law, PC responded to Plaintiff's counsel, Randy Haj, advising him that "David and J.R. have been in a federal trial since Tuesday" and that his email would be brought to their attention once they were back in the office." (Bernstein Decl. ¶5, ROA 272.) However, this does not explain why Defendants failed to make time to meet and confer prior to Plaintiff filing these motions on 4/10/2026.

Therefore, it does not appear that the parties have engaged in any meet and confer whatsoever as to ROAS 203, and 207 prior to their filing.

Therefore, the Court finds that further meeting and conferring, in good faith, with lead counsel, is in order.

All in all, the above meet and confer efforts were slim and in no way narrowed the parties discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter.

All six (6) Motions are continued to July 23, 2026 at 1:30 p.m. Lead Counsel is ordered to meet and confer in person, via videoconference, or via telephone. Nine (9) Court days prior to the continued hearing date, counsel to file a joint separate statement setting forth the results of the meet and confer; to the extent any disputes remain, and as to those disputes: 1) set forth the request, 2. response, 3. why or why not further response is necessary.

Additionally, the parties are directed to review the Pre-Trial Discovery Conference guidelines developed by this Department and accessible at <https://www.occourts.org/system/files/civil/pre-trial-discovery-conference-guidelines>.

The Court will reserve the right to sanction either party or both at the continued hearing date.

		<i>Clerk to give notice.</i>
102	Legg vs. CSCDA Community Improvement Authority, 25-01492979	Defendant CSCDA Community Improvement Authority ("CSCDA") demurs to all causes of action in Plaintiffs' Complaint on the grounds that Plaintiffs failed to allege compliance with the claims presentation requirement of the Government Claims Act (Government Code §900 et seq.). Under the Government Claims Act, "no suit for money or damages may be brought against a [local] public entity ... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board...." (Gov't Code § 945.4; <i>see also Barrios v. California Interscholastic Federation</i> (9th Cir. 2002) 277 F.3d 1128, 1136, fn. 6.) A "local public entity" is defined as "a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State...." (Gov't Code § 900.4.) Here, it is not clear from the face of the Complaint whether CSCDA is a public agency. CSCDA therefore asks this Court to take judicial notice of the following: 1. The CSCDA COMMUNITY IMPROVEMENT AUTHORITY is a Public Entity under California's Government Code §811.2, §945.4 and §6500. See Declaration of Kevin J. Price, Paragraph 3, and Exhibit A, thereto. 2. Exhibit A to the accompanying declaration of Kevin J. Price is a true and correct copy of the JOINT EXERCISE OF POWERS AGREEMENT RELATING TO THE CSCDA COMMUNITY IMPROVEMENT AUTHORITY. (Declaration of Kevin J. Price filed concurrently herewith, ¶ 3; Exhibit A thereto) (ROA 45, RJN.) Paragraph 3 of the declaration of Kevin J. Price states: "I am informed and believe and based thereon state that the CSCDA COMMUNITY IMPROVEMENT AUTHORITY is a Public Entity under California's Government Code §811.2, §945.4 and §6500." Kevin J. Price is counsel of record for Defendants in this case. (Price Decl., ¶ 1.) He lays no foundation for the statement that CSCDA is a public entity, and is only able to make that declaration on information and belief.